Civil Forfeiture and the Access to Justice Gap

The Issue

The state of Illinois law enforcement has collected $1.2 billion through civil forfeiture from 2000-2023.[1] This means that every year, thousands of Illinois residents are losing their cars, cash, and other property. This is done while often not being convicted of any crime connected with their property, as the civil proceedings run separate from their criminal counterparts. This also fails to give citizens the protections they enjoy with criminal proceedings; there is no public defender system for civil charges, no presumption of innocence, and the government (until more recent reforms[2]) at minimum had to prove probable cause. This system does remove instruments of crimes from people who should not have them. It also preys upon vulnerable groups and exists as an arm of the government to generate revenue. Addressing a justice gap by making the process of civil forfeiture easier for citizens, we can help address—in some small part—the massive imbalance that currently exists in our civil forfeiture system.

Illinois has two main avenues of forfeiture. The Drug Asset Forfeiture Procedure Act ("DAFPA") governs forfeiture when property is connected to a controlled substance offense.[3] The Criminal Code[4] has a separate channel for forfeiture condoning the takings for a range of criminal offenses, DUI, solicitation of prostitution, and others. Under both statutes, the state initiates an *in rem* action that is taken against the property, not the person who committed a crime.[5] This is a

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[1] Inst. for Just., *Policing for Profit: The Abuse of Civil Asset Forfeiture* 4th ed. (2025)

[2] ACLU of Illinois. (2017) *HB 303: Civil Asset Forfeiture Reform – ACLU of Illinois.* https://www.aclu-il.org/legislation/hb-303-civil-asset-forfeiture-reform/

[3] 725 Ill. Comp. Stat. 150/1 et seq. (2024)

[4] 720 Ill. Comp. Stat. 5/36-1 et seq. (2024)

[5] *People v. $1,124,905 U.S. Currency & One 1988 Chevrolet Astro Van*, 177 Ill. 2d 314, 8 (Ill. 1997)

confusing legal mechanism, adding to the misunderstandings about the forfeiture legal process for citizens.

The citizens most often confronted with a civil forfeiture proceeding are not criminal masterminds. The median currency forfeiture in Illinois from 2019 to 2023 was $1,031, and median car forfeiture value was $7,050.[6] The people most often having their property seized are middle and lower-middle class citizens who often do not have the financial means to remedy the issues immediately, nor contest the seizure. The most common offenses are non-violent; driving without a license, possession of drugs, aggravated fleeing or evading. [7] An "instrumentality to the crime" is a wide net with life altering consequences.

One of the largest hurdles which cannot be solved under current rules for practice of law is the underrepresentation problem. The cost of fighting a civil forfeiture case with the help of counsel is often well beyond the value of recovering the forfeited asset. Hiring an attorney to work on the median currency forfeiture of $1,031 does not make sense; most hourly costs of an attorney will eclipse the value of the currency confiscated by the state. Two thirds of Cook County Property owners facing forfeiture proceed pro se. [8] Pro se procedures are confusing, intimidating, and often lead to confusion and mismanagement of the case over its life cycle as a result.

My own experience with the forfeiture court reflected this. Observing the court weekly I noticed a trend in the self-represented: The judge, exasperated, extending the case to another date

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[6] Chi. Appleseed Ctr. for Fair Cts., *I Don't Know Why I'm Here: Observations from Cook County's Civil Asset Forfeiture Courtrooms* (2023)

[7] Chi. Appleseed Ctr. for Fair Cts., *I Don't Know Why I'm Here: Observations from Cook County's Civil Asset Forfeiture Courtrooms* (2023)

[8] Chi. Appleseed Ctr. for Fair Cts., *I Don't Know Why I'm Here: Observations from Cook County's Civil Asset Forfeiture Courtrooms* (2023)

because the proper proceedings had not been filed. The state motioning for a judgement, and a person at the podium asking why they can't just have their car back. Multiple times defendants in criminal trials, while in court from zoom, asked why their court appointed attorney wasn't helping them with their civil case. They felt like the system had been rigged against them. Not only have they temporarily lost their freedom, but they had permanently lost their property.

As a civil issue, the Sixth Amendment does not attach, so representation is not provided by the state. This is even more confusing for some people who are dealing with criminal cases that go hand in hand with their civil forfeiture case. A person driving without a license or a person arrested on charges of selling or possession of drugs will often have their car seized at the time of their arrest. This leads to the structural issue of civil forfeiture. Incarcerated people who have limited access to resources and limited time must respond to a civil proceeding on a fast timeline, usually without counsel, while dealing with their criminal charges. The system (seemingly by design) produces default forfeitures.

Another system I observed that was full of pitfalls for property owners was the innocent owner paradox. A parent who is lending a car to an adult child, only to have that child use their vehicle for illegal behaviors. A friend loaning a car to someone who then used it for a crime they had no knowledge of. They both must now deal with the prospect of the state taking their car from them.

Illinois law does provide a relief valve: a property owner may request an innocent owner hearing by filing a motion with a supporting affidavit demonstrating seven elements; the (1) are the true owner of the property; (2) were not legally responsible for the underlying conduct; (3) did not solicit or attempt the conduct; (4) had no knowledge of the criminal activity; (5) if they became aware of the illegal conduct, they reasonably tried to stop it; (6) did not hold the property for the

benefit of the accused; and (7) they are the bona fide purchaser.[9] The burden of proving the elements lies on the owner, and the standard is by a preponderance of the evidence.

Simple, right? This is only useful if the person whose property has been taken is even aware of this solution in the first place. Knowledge of the process is no guarantee of a successful navigation of the proceedings. Filing the motion alone requires drafting a legally sufficient affidavit addressing each statutory element. Doing this alone and with limited legal knowledge is difficult. The defense technically exists but is ineffective from practicality and accessibility standpoints. The system, again, seems to be operating towards judgements for forfeitures.

Cases

The Illinois Supreme Court ("ILSC") has addressed civil forfeiture, and their decisions have shaped and often restrained the rights of property owners. First, the Court has stated that challenges to the process on due process grounds is not an argument they're going to consider. *People v. One 1998 GMC*, 2011 IL 110236, 960 N.E.2d 1071 (Ill. 2011) The plaintiff brought a facial challenge to the vehicle forfeiture provision of the Criminal Code because there was no required probable cause hearing after the seizure. *Id.* The Court decided that the proceedings themselves were all the process due. *Id*. at 24. This case also made it more difficult for innocent owners to retain ownership of their property. Only one owner need be aware of the criminal activity to forfeit the ownership of another, unaware owner. *Id.* at 28.

The Court has defended the rights of property owners, too. The State must meet basic pleading standards even in forfeiture proceedings. *People v. $1,124,905 U.S. Currency & One 1988*

[9] 725 Ill. Comp. Stat. 150/9(H)

Chevrolet Astro Van, 177 Ill. 2d 314 (Ill. 1997). Police had found over one million dollars in a hidden compartment of the titular vehicle, and the circuit court struck the claimant's answers for lack of standing, entering a default forfeiture order. *Id*. The decision of the lower court was upheld in the appellate court, but on different grounds. *Id*. The appellate found the State had established probable cause. *Id*. The Court remanded the case, holding that the State's complaint had failed to state a claim for forfeiture, but deserved a chance to amend. *Id*. at 16. This is an example of how the pitfalls of the complex proceedings process can catch either side of the case. The technicality of the process arguably favors the state much more than a pro se defendant.

The state courts must operate within the architecture provided by the Constitution and defined by the Supreme Court. In *Bennis v. Michigan*, Tina Bennis co-owned her vehicle with her husband who had been arrested while soliciting a prostitute. *Bennis v. Michigan*, 516 U.S. 442 (1996). The Court laid the groundwork for the decision we saw in the Illinois Supreme Court, even though Tina had an interest in the vehicle, her lack of knowledge or involvement wasn't enough to save her car. *Id*. at 453. In Stevens' dissent, he stated "the blatant unfairness of this seizure" was "a violation of the due process of law." *Id*. at 458. (Stevens, J., dissenting).

In *Timbs* the Court held in a 9-0 decision that the Eighth Amendment's Excessive Fines Clause is incorporated against the states through the Due Process Clause of the Fourteenth Amendment. *Timbs v. Indiana*, 586 U.S. 146 (2019). If the fine for the charged crime is heavily outweighed by the cost of the forfeited property, it's an excessive fine. This means every state forfeiture is subject to an Eighth Amendment proportionality review, but again only if the property owner is aware the argument exists.

In 2024, the Court held that due process does not require a separate preliminary hearing following a property seizure. *Culley v. Marshall*, 601 U.S. 377 (2024). The only due process requirement is a timely forfeiture hearing, assessed under the indirectly applied *Barker v. Wingo* test: the length of the delay, the reason for the delay, whether the property owner asserted their rights, and whether the delay was prejudicial. *Id*. at 390. Justice Sotomayor dissented, warning of property owners not hearing for months or even years for a judicial review of the seizure. *Id.* at 402. (Sotomayor, J., dissenting).

2017 Reforms

In 2017, Governor Rauner signed HB 303. This piece of bi-partisan legislation changed forfeiture law in Illinois, shifting the burden of proof to the state, adding a requirement for the government to prove by a preponderance of evidence that the property is subject to forfeiture.[10] Another big improvement was the removal of the 10% of cost bond requirement which required property owners to pay a tenth of the value of the forfeited property just to have their case heard. [11] This disproportionately affected lower income claimants, reclaiming their ability to recover or at least attempt to recover their property from the government. Included in HB 303 is a mandatory reporting requirement[12]; increasing transparency of a system where police confiscate property that ends up funding their budgets: 90% of forfeiture proceeds flow directly to law enforcement. [13] HB 303 did not include conviction requirements. You do not need to ever be convicted of a crime, or even charged, to have your property forfeited.

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[10] HB 303, 103d Gen. Assem. (Ill. 2024)

[11] HB 303, 103d Gen. Assem. (Ill. 2024)

[12] HB 303, 103d Gen. Assem. (Ill. 2024)

[13] Inst. for Just., *Policing for Profit: The Abuse of Civil Asset Forfeiture* 4th ed. (2025)

The Interview

I am working on three interviews for the process of civil forfeiture. Filing the appearance, then the answer to the complaint, and third, a hardship motion. The reason for choosing these parts of the process is to provide guidance through the most used forms for forfeiture, and they are the most visible forms on the Illinois form website.

Filing the appearance is the first step in the process and involves some screener questions to ensure the user is using the proper guided interview. It asks if the complaint has been received from the state within the last 45 days and inform of the timely filing requirement. If outside of that 45 day window, it informs of the availability of the motion to vacate a default judgement brought under 735 ILCS 5/2-1203 or 5/2-1301. It will ensure the form is being filed for the correct jurisdiction. It will ask if there is a lien on the property, and if there are any other owners of the property. The interview will then guide the user through the form, asking questions to populate the variables and complete the process.

The answer to the complaint follows the same process but will include one extra screener question: Was the property forfeited in connection to drugs or money laundering? If yes, this form cannot be used. There is a separate process for these forfeitures, making the system more mysterious

The final form is the hardship motion. This form is important to regain possession of the vehicle seized, albeit only temporarily. This can be the difference for someone to be able to go to work, get to school, or attend court for their case. It will ask if it's been within 28 days of the preliminary review or finding of probable cause, the window of eligibility.

These interviews won't solve the entire problem of civil forfeiture or even tackle a large portion of the issues. The system itself is still inherently difficult to navigate. If by design, it harkens to other issues in our justice system—it is this way to be used by trained professionals and is not actually there to give every person in their country their fair chance in court. This is the big access to justice gap that seems almost insurmountable to me.

I'm hoping that this isn't the case. There are reforms for more transparency and a less punishing system in the last 10 years that point towards the government reconsidering the forfeiture process. This is stepping in the right direction, and we need to continue the momentum forward to push further reforms. ILAO and other online resources are a good baseline of assistance to help mitigate the disparity between those with a legal education and those without. Building out these tools and implementing more online legal help through education and non-practice routes is a great way to bridge the gap while we're working towards a better system.

These first few guided interviews can help people who are dealing with forfeited property. making the process a bit easier. Until there are reforms to the civil proceedings that are often undertaken pro se—either acceptance of more advanced technological advances in the legal practice, or more lawyers made available through pro bono or other social work means—they will always be a tall task to undertake alone.